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THE STATE OF TEXAS
VS.
OLIVIA A HUERTA
2606 RASPBERRY LANE
PASADENA, TX 77502

SPN: 03029256
DOB: W F 11/06/1996
DATE PREPARED: 11/5/2019

D.A. LOG NUMBER: 2587541
CJIS TRACKING NO.:
BY: RH DA NO: 1902450
AGENCY:PID
O/R NO: 1900603
ARREST DATE: TO BE

FILED
Marilyn Burgess
District Clerk
NOV 05 2019
Harris County, Texas
Time: _____
By: _____ Deputy

NCIC CODE: 1199 01

RELATED CASES: OTHER MISD

FELONY CHARGE: IMPROPER RELATIONSHIP WITH STUDENT

CAUSE NO:
HARRIS COUNTY DISTRICT COURT NO:
FIRST SETTING DATE:

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232

COURT ORDERED BAIL: TO BE SET
MAGISTRATION
PRIOR CAUSE NO:
CHARGE SEQ NUM:

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, OLIVIA A HUERTA, hereafter styled the Defendant, heretofore on or about March 1, 2018, did then and there unlawfully, while an employee of a public secondary school, intentionally and knowingly engage in sexual intercourse with E.G., hereinafter called the Complainant, a student who was enrolled at the school at which the Defendant worked and who was not the Defendant's spouse, by causing the penetration of the female sexual organ of the Defendant with E.G.'s male sexual organ.

Probable Cause

Affiant A. Murphy, a certified peace officer employed by the Pasadena ISD Police Department, has reason to believe and does believe that Olivia A. Huerta, hereafter referred to as the Defendant, committed the offenses of Sexual Assault of a Child and Improper Relationship with a Student in Harris County, Texas, on or about March 1, 2018. Your Affiant bases that belief upon the following facts:

Affiant spoke to Chad Cox, a credible and reliable person employed as an Assistant Principal at Sam Rayburn High School. Witness Cox told affiant that a teacher had reported to him an inappropriate sexual relationship between E.G. and Defendant, Olivia A. Huerta, who Cox stated he knows by name and sight as a substitute teacher employed by Pasadena ISD. Cox verified for affiant that E.G. was a student at Sam Rayburn and had been a student at the school previous year as well. Cox told affiant that according to the report that he received, E.G. had admitted the sexual relationship to another student who had in turn reported the relationship to school administration. Further, Cox stated that the student had identified the substitute teacher as Defendant, Olivia A. Huerta. Cox told affiant that the administration had verified that Defendant had been a substitute teacher at the school the previous year as well. Witness Cox told affiant that Defendant was actually present at the school that day and teaching a class. Cox then pulled Defendant from that classroom for an interview with affiant.

Affiant conducted an interview with E.G., hereafter called Complainant, who told affiant that he had been removed from class today in reference to an incident involving a substitute teacher. Complainant told affiant that he met the substitute teacher the previous year when she substituted for his social studies class. Complainant told affiant that between January and April of 2019, he was not sure of the actual date, but knew it was before he turned seventeen, he met the substitute teacher and walked with her to her parents' home nearby. Complainant described the house to affiant as a blue, 2 story house with a Green Bay Packers' sign on the door. Complainant told affiant that they went into the house and while they were there he engaged in sexual intercourse with the teacher. Complainant stated that he did not know the teacher's name, but he identified her as a short, curvy, Hispanic female. Complainant admitted to affiant that prior to the sexual activity he and the substitute teacher had exchanged phone numbers and had communicated via Snapchat as well. Affiant obtained the Complainant's date of birth from his school records and determined that he would have been 16 on or about March 1, 2018. Affiant spoke with J. Barrera, a certified peace officer employed by Pasadena ISD who told affiant that he showed Complainant a photo array containing a photo of Defendant Olivia A. Huerta and other individuals with similar physical characteristics and that Complainant positively identified Defendant as the person with whom he had sex. Affiant looked at the photo array and observed that the person who Complainant identified was the same Olivia Huerta who had confessed the sexual relationship with Complainant to affiant.

Affiant spoke with Defendant Olivia A. Huerta on campus at Sam Rayburn High school. Affiant identified Defendant by her school identification card which carries a photo of Defendant and her name. Affiant observed that Defendant also fit the physical description on the substitute teacher that was given by Complainant. Defendant admitted to affiant that she had been communicating with Complainant via Snapchat. Further, Defendant admitted that her parents lived in the area at 2606 Raspberry Lane, which affiant knows to be located in Harris County, Texas. Defendant confessed to affiant that during the 2018-2019 school year, she walked home with a student to her parents' address. She told affiant that the student came into the house with her and they had sex, specifically stating that he "stuck it in" real

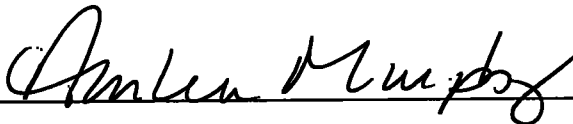
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quick. Defendant told affiant that she met the student at school and that she believed that she had him in one of the classes that she taught as a substitute teacher the previous year. Defendant provided affiant with her cell phone and a written consent to search. Affiant reviewed the contents of Defendant's phone and found text messages between Defendant and an iCloud account that carried Complainant's complete name. Affiant found messages between Defendant and that iCloud account regarding the sexual relationship, specifically one in which Complainant tells Defendant "I remember the day you raped me" and then suggests that they engage in what Complainant describes as "Round 2."

Later, Affiant went to the location on Raspberry described by Defendant as where the sexual intercourse occurred. Defendant answered the door. Affiant observed that there was a Green Bay Packers' sign on the door just as Complainant had described.

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on November 05, 2019



AFFIANT



ASSISTANT DISTRICT ATTORNEY
OF HARRIS COUNTY, TEXAS

Bar No.

19052502

COMPLAINT